

Krishna Kant Dubey v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 3 April 2026 · Writ - C No. 12738 of 2026 · **Interlocutory order; listed 10 April 2026 as fresh. The licensee is to explain by affidavit how arrears can accumulate on prepaid-meter supply; on omission, interim interference. Clause 6.5 maintainability and restoration not decided.**

HEADNOTE

An interlocutory order on a consumer's writ for restoration of supply. The petitioner said all consumption bills were paid regularly and sought consideration of a representation dated 23 January 2026 and restoration of the connection; the only outstanding was a claim of arrears of Rs. 1,84,421 on an earlier prepaid meter. The licensee submitted that the petitioner must find his remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not relegate. On query as to how accumulated arrears can arise on supply made through a prepaid meter, licensee's counsel was unable to satisfy the Court. The supply company is to file an affidavit explaining that query, to be accepted on the adjourned date upon advance copy; on omission there will be interim interference. Listed 10 April 2026 as fresh. Not a final construction of Clause 6.5, nor a decision on restoration or the arrears.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Prepaid-meter arrears after regular payment of consumption bills — Clause 6.5 relegation not applied; licensee to explain the arrears by affidavit, else interim interference

QUESTION

Where a consumer seeking restoration says all consumption bills were paid regularly, and the only demand is arrears on an earlier prepaid meter, is the writ not maintainable because the consumer must proceed under Clause 6.5?

HOLDING

The Court did not relegate to Clause 6.5 and did not decide maintainability. It queried how accumulated arrears can arise on supply made through a prepaid meter; licensee's counsel was unable to satisfy the Court. The supply company is to file an affidavit explaining that query, to be accepted on the adjourned date upon advance copy served. On omission there will be interim interference. Listed 10 April 2026 as fresh. ¶ 1-4

LIMITING FACTS

Petitioner Krishna Kant Dubey; representation dated 23 January 2026 seeking restoration; alleged prepaid-meter arrears Rs. 1,84,421; respondent nos. 2 to 4 are the supply company. Restoration of the connection was the prayer; it was not ordered on this date.

FLAG Interlocutory only — listed 10.4.2026. Clause 6.5 was invoked by the licensee as the consumer bill-dispute channel (SCJ-013, SCJ-046, SCJ-083); this order does not apply it. Companion: SCJ-283 (same pattern: demand after bills paid; licensee to demonstrate the authorizing provision).

PRINCIPLE TAGS

licensee-demand-on-paid-bills-requires-shown-provision Interlocutory. Where consumption bills were paid regularly and the licensee claims accumulated arrears on an earlier prepaid meter, the writ court did not relegate to Clause 6.5 and required the licensee to explain by affidavit how such arrears can arise on prepaid supply, with interim interference on omission. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE WRIT IS NOT MAINTAINABLE AND THE CONSUMER MUST FIND HIS REMEDY UNDER CLAUSE 6.5

Invoked by the licensee; not decided. Affidavit directed instead. ¶ 2-3

NOT DECIDED — WHETHER, AND HOW, ACCUMULATED ARREARS OF RS. 1,84,421 CAN EXIST ON SUPPLY MADE THROUGH A PREPAID METER

Expressly left for the licensee's affidavit on the adjourned date. ¶ 2-3

NOT DECIDED — RESTORATION OF THE CONNECTION AND CONSIDERATION OF THE REPRESENTATION DATED 23 JANUARY 2026

The prayer; not granted. Conditional only: interim interference if the affidavit is omitted. ¶ 1, 3-4

SCJ-284 · Krishna Kant Dubey v. State of U.P. & 3 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.